

The examination is being carried out on the **following application documents**

Description, Pages

1-67 filed with entry into the regional phase before the EPO

Claims, Numbers

1-8 filed in electronic form on 22-03-2021

Drawings, Sheets

1/4-4/4 filed with entry into the regional phase before the EPO

- 1 By letter of 22-03-2021, the applicant has filed a new set of claims where the objected compounds in claims 3 and 5 have been removed and introduced in claim 1. Also claims 3 and 5 have been made dependent from claim 1 as requested by the examiner.

In view of the fact that the above mentioned compounds are known from the original description as already acknowledged in the previous communication, the present subject-matter meets the requirements of article 123(2) EPC.

- 2 As regards novelty, the examiner agrees to the applicant's analysis. Compound 4 differs from D4, compound 32 in a different position of the methoxy group, compounds 5 shows a methyl instead of a methoxy group and the wrong position and compound 12 has a piperidine ring instead of the known piperazine ring.

Therefore, the present subject-matter is novel pursuant to article 54(1)(2) EPC.

- 3 As regards inventive step of these three extra compounds, which have a hydrogen at the position of R¹, the application has argued in comparison to compound 19 of D4. In the applicant's opinion, the compounds under discussion show a much higher inhibitory activity on the proliferation on cells (H1975) than the compound 19 of D4.

This may be true, however the applicant has not made a comparison to the structurally closest compound (see decision T181/82) which in the applicant's opinion obviously is compound 32 of D4 (see above novelty discussion), but to another compound which has a very low inhibitory activity.

Looking at the results in D4, table 2 for the compound 32 (inhibition of H1975), it becomes clear that this compound has an IC_{50} value of 0.0039 μM whereas present compounds 4, 5 and 12 (see extra compounds in claim 1) have values of 0.009, 0.006 and 0.009 μM . Therefore, it is clear that present compounds 4, 5 and 12 are worse in the inhibitory activity than the structurally closest compounds.

Therefore, no inventive step can be acknowledged for the newly introduced compounds of claim 1 and thus the present subject-matter does not meet the requirements of article 56 EPC.

- 4 As regards compounds with R^1 being phenyl or cycloalkyl, an inventive step can be acknowledged as already mentioned in the previous communication.